

25TRCV00380 25TRCV00380

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-21

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Case Number: 25TRCV00380 Hearing Date: September 21, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday

– September 21, 2026

Department M Calendar No.

PROCEEDINGS

Historic Automobile Preservation Entity v.

Home Budget Loans, et al.

25TRCV00380

1. Nyece Chaney's Motion to Vacate Order Establishing

Partition Referee

TENTATIVE RULING

Nyece

Chaney's Motion to Vacate Order Establishing Partition Referee is taken off
calendar.

However,

the Court, on its own motion, modifies the Court's order of March 17, 2026.

Paragraph 11(b) of the March 17, 2026 Stipulated Interlocutory Judgment for
Partition by Sale and Order Appointing Referee is hereby stricken.

Background

Plaintiff filed the Complaint on February 4, 2025. Plaintiff alleges the following facts. Plaintiff seeks an order of partition as to the following property: 610 Lairport Street, El Segundo, California 90245. On March 17, 2026, the parties reached a settlement. A Stipulated Interlocutory Judgment for Partition By Sale and Order Appointing Partition Referee was signed and filed

Motion to Vacate Order

Non-party Nyece Chaney ("Chaney") moves for an order to modify the order appointing a partition referee. The motion is made to remove paragraph 11 of the order which reflects upon this non-party's rights and interests. Chaney argues that, in *Chaney v. Historic Auto Preservation Entity et al*, 24TRCV00805, the Court entered a judgment on a jury verdict against Historic Automobile Preservation Entity ("HAPE") in the amount of \$9,815,558.00. That judgment is currently on appeal. Chaney contends that HAPE was unsuccessful in obtaining a stay of enforcement of the judgment. However, Chaney states that the order entered in the instant case obstructs her ability to enforce the judgment.

Paragraph 11(b) of the order appointing a partition referee states as follows:

"The Referee shall segregate HAPE's 25% net proceeds (and any credits or debits otherwise allocable to HAPE) into a separate, interest-bearing subaccount (and specifically shall not invest HAPE's net proceeds in the stock market or similar type investments) and shall not disburse those segregated funds until such time HAPE's appeal in *Nyece Chaney v. Automobile Driving Museum, et al*. [LASC Case No. 24TRCV00805] has concluded, and upon further order of this Court."

Plaintiff argues that this non-party cannot participate in this partition action. Code Civ. Proc., § 872.720(a) states: "If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (emphasis added).

The Court believes that this argument is well-founded as a partition action and the interlocutory judgment should only determine the interests of the parties in the subject property. Thus, the argument that this non-party lacks standing to make this motion appears reasonable. On the other hand, the interlocutory judgment itself appears to improperly attempt to make orders that intrude upon the judgment of another Court and also attempts to obstruct and hinder the rights and interest of this moving third party.

"[Code of Civil Procedure] sections 437c and 1008 limit the parties' ability to file repetitive motions but do not limit the court's ability, on its own motion, to reconsider its prior interim orders so it may correct its own errors." *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107. Pursuant to *Le Francois v. Goel*, the Court reconsiders and modifies the March 17, 2026 Stipulated Interlocutory Judgment for Partition by Sale and Order Appointing Referee.

The Court strikes and eliminates paragraph 11(b) of the order which currently states: "The Referee shall segregate HAPE's 25% net proceeds (and any credits or debits otherwise allocable to HAPE) into a separate, interest-bearing subaccount (and specifically shall not invest HAPE's net proceeds in the stock market or similar type investments) and shall not disburse those segregated funds until such time HAPE's appeal in *Nyece Chaney v. Automobile Driving Museum, et al.* [LASC Case No. 24TRCV00805] has concluded, and upon further order of this Court." The above language is stricken from the judgment and order.

The instant Court lacks jurisdiction to make any orders that would encompass upon any orders and judgments that were made in Case No. 24TRCV00805. If Plaintiff has in fact obtained a stay of enforcement of the judgment in that case, then, of course, the Referee must follow any lawful orders of the Court. On the other hand, if there is no stay of enforcement, as the third party Chaney adamantly insists, then, the March 17, 2026 judgment and order as currently written clearly infringes upon her interests and acts as an improper de facto stay of enforcement of judgment. The interlocutory judgment and order in the instant action cannot act as a backdoor method to impose rights and obligations upon third parties in a separate action. As noted above, by the own authority set forth by Plaintiff in its opposition, the interlocutory judgment must only determine the interests of the parties in the subject

property and not make any determination of the interests and rights of non-parties.

Thus, on the Court's own motion, paragraph 11(b) of the interlocutory judgment and order is hereby stricken.

Plaintiff is ordered to give notice of this ruling.